

Syllabus

volves a claim that arises in a “new context” or involves a “new category of defendants.” *Correctional Services Corp. v. Malesko*, 534 U. S. 61, 68. If so, the Court then asks whether there are any “special factors [that] counse[l] hesitation” about granting the extension. *Abbasi*, *supra*, at 136. Pp. 99–102.

(b) Petitioners’ *Bivens* claims arise in a new context. Their claims are based on the same constitutional provisions as claims in cases in which damages remedies were previously recognized, but the context—a cross-border shooting—is significantly “different . . . from previous *Bivens* cases.” *Abbasi*, 582 U. S., at 139. It involves a “risk of disruptive intrusion by the Judiciary into the functioning of other branches.” *Id.*, at 140. P. 103.

(c) Multiple, related factors counsel hesitation before extending *Bivens* remedies into this new context. Pp. 103–114.

(1) The expansion of a *Bivens* remedy that impinges on foreign relations—an arena “so exclusively entrusted to the political branches . . . as to be largely immune from judicial inquiry,” *Haig v. Agee*, 453 U. S. 280, 292—risks interfering with the Executive Branch’s “lead role in foreign policy,” *Medellín v. Texas*, 552 U. S. 491, 524. A cross-border shooting affects the interests of two countries and, as happened here, may lead to disagreement. It is not for this Court to arbitrate between the United States and Mexico, which both have legitimate and important interests at stake and have sought to reconcile those interests through diplomacy. Pp. 103–106.

(2) Another factor is the risk of undermining border security. The U. S. Customs and Border Protection Agency is responsible for preventing the illegal entry of dangerous persons and goods into the United States, and the conduct of their agents positioned at the border has a clear and strong connection to national security. This Court has not extended *Bivens* where doing so would interfere with the system of military discipline created by statute and regulation, see, *e. g.*, *Chappell v. Wallace*, 462 U. S. 296, and a similar consideration is applicable to the framework established by the political branches for addressing cases in which it is alleged that lethal force at the border was unlawfully employed by a border agent. Pp. 107–109.

(3) Moreover, Congress has repeatedly declined to authorize the award of damages against federal officials for injury inflicted outside U. S. borders. For example, recovery under 42 U. S. C. § 1983 is available only to “citizen[s] of the United States or other person[s] within the jurisdiction thereof.” The Federal Tort Claims Act bars “[a]ny claim arising in a foreign country.” 28 U. S. C. § 2680(k). And the Torture Victim Protection Act of 1991, note following 28 U. S. C. § 1350, cannot be used by an alien to sue a United States officer. When Congress has